

common law. 386 U. S., at 555-557. We found qualified immunities appropriate in two recent cases.¹³ In *Scheuer v. Rhodes*, 416 U. S. 232 (1974), we concluded that the Governor and other executive officials of a State had a qualified immunity that varied with "the scope of discretion and responsibilities of the office and all the circumstances as they reasonably appeared at the time of the action. . . ." *Id.*, at 247.¹⁴ Last Term in *Wood v. Strickland*, 420 U. S. 308 (1975), we held that school officials, in the context of imposing disciplinary penalties, were not liable so long as they could not reasonably have known that their action violated students' clearly established constitutional rights, and provided they did not act with malicious intention to cause constitutional or other injury. *Id.*, at 322; cf. *O'Connor v. Donaldson*, 422 U. S. 563, 577 (1975). In *Scheuer* and in *Wood*, as in the two earlier cases, the considerations underlying the nature of the immunity of the respective officials in suits at common law led to essentially the same immunity under § 1983.¹⁵ See 420 U. S., at 318-321; 416 U. S., at 239-247, and n. 4.

¹³ The procedural difference between the absolute and the qualified immunities is important. An absolute immunity defeats a suit at the outset, so long as the official's actions were within the scope of the immunity. The fate of an official with qualified immunity depends upon the circumstances and motivations of his actions, as established by the evidence at trial. See *Scheuer v. Rhodes*, 416 U. S. 232, 238-239 (1974); *Wood v. Strickland*, 420 U. S. 308, 320-322 (1975).

¹⁴ The elements of this immunity were described in *Scheuer* as follows:

"It is the existence of reasonable grounds for the belief formed at the time and in light of all the circumstances, coupled with good faith belief, that affords a basis for qualified immunity of executive officers for acts performed in the course of official conduct." 416 U. S., at 247-248.

¹⁵ In *Tenney v. Brandhove*, of course, the Court looked to the